

STATE OF INDIANA COUNTY OF VANDERBURGH

IN THE VANDERBURGH SUPERIOR COURT CAUSE NO. 82D01-2512-CT-008032

THE ESTATE OF LEONARDO (“LEO”)

ESLINGER, et al.,

Plaintiffs,

v.

Related Case Numbers:

**26S-SJ-00061 (Supreme Court Special
Judge Appointment)**

**14D01-2603-CB-000248 (Change of
Venue from Daviess)**

**14D01-2603-CB-000258 (Change of
Venue from Daviess)**

JILLIAN N. KRATOCHVIL, and STOLL,

KEENON, OGDEN, PLLC,

Defendants.

**MEMORANDUM D: IN SUPPORT OF MOTION TO VACATE ORDER DENYING
PLAINTIFFS’ MOTION FOR EXPEDITED DISCOVERY AND PROTECTIVE
ORDER**

Plaintiffs, The Estate of Leonardo Eslinger, et al. (“Plaintiffs”), respectfully submit this memorandum in support of their Omnibus Motion to Vacate the Court’s May 6, 2026 Order Denying Plaintiffs’ Emergency Motion for Expedited Discovery and for a Protective Order. This motion is distinct from the motion regarding Defendant SKO’s protective order and addresses Plaintiffs’ affirmative request to halt SKO’s ongoing interference in their personal and business affairs.

INTRODUCTION

The Court's May 6 Order denied Plaintiffs' plea for protection from Defendant SKO's extrajudicial efforts to harass, intimidate, and prejudice Plaintiffs by actively interfering in Plaintiff Kristi Held's personal real estate negotiations. This interference is not a separate, unrelated dispute; it is a calculated litigation tactic designed to conceal SKO's own misconduct and gain leverage in this case. The Court denied Plaintiffs' motion without a hearing, relying solely on SKO's self-serving and misleading narrative, which concealed its egregious ethical violations. This denial allows SKO's campaign of interference to continue unabated and prevents Plaintiffs from discovering the full extent of SKO's improper conduct.

ARGUMENT

I. SKO is Engaging in a Pattern of Misconduct that Mirrors the Actions of its Former Employee, Defendant Kratochvil.

To understand the severity of SKO's current actions, they must be viewed in the context of the underlying case. SKO's interference in the Rudolph/Held real estate transaction is a continuation of the same pattern of unethical conduct exhibited by Defendant Kratochvil when she served as Guardian ad Litem ("GAL"). The documented timeline of Kratochvil's GAL misconduct establishes this pattern:

- **Late Filing:** Kratochvil filed her GAL report eight days late—due September 25, 2023, but filed October 3, 2023.
- **Failure to Disclose:** She never sent a copy of the report to petitioners before the October 5, 2023 hearing, denying them the statutorily required opportunity to review and prepare a response.
- **Burden on Petitioners:** Petitioners were forced to miss work to read the damning, sloppy, misleading, biased, and inaccurate report in their attorney's office the day before the scheduled hearing, prompting a continuance to October 9, 2023.

- **Misdated Report:** The report was dated October 4, 2023—the day AFTER it was filed.
- **Premature Withdrawal:** Just five days after filing her report (October 9, 2023), Kratochvil submitted an oral motion to withdraw, falsely claiming she had 'completed' her duties as GAL, knowing full well she had not testified and her work had not been challenged.
- **Sealed Before Challenge:** The report was sealed to the record BEFORE anyone had an opportunity to challenge it, preventing scrutiny of its contents.
- **No Written Disclosure:** Kratochvil never provided written disclosure to petitioners of her appointment as required.
- **Selective Notification:** She was selective in which cases she notified parties of the appointment, but at no point provided the required written disclosure to petitioners.
- **De Facto Immunity:** She asked the court to grant her de facto judicial immunity—something not afforded by I.C. § 31-17-6-8.
- **Career Over Children:** The report was filed just three days before Governor Holcomb publicly announced her judicial appointment on September 28, 2023, demonstrating that her career was prioritized over the children's interests.
- **Biased Investigation:** She conducted a limited and biased investigation, choosing to prioritize her own 'beliefs' about whether a substantiated DCS report of abuse was truly substantiated by attacking the victim's inability to recall or willingness to share 'intimate details of the abuse and specific time frames.'

"• Failure to Mark Report Confidential: Kratochvil failed to protect the confidentiality of the minor children by failing to mark the report as confidential when filing it. This was not merely a technical violation—it had devastating consequences. Because the report was unmarked, it was obtained from the scene of Joseph and Diana's residence.

Louisiana DCS relied upon this information to be factual when it was not, and used it against petitioners. The children were forced to stay in foster homes, and petitioners—despite having permanent guardianship status in Indiana—were forced to undergo a lengthy and extremely sensitive ICPC process to prove they were a safe placement. At the time when the surviving children needed the comfort and stability of their loving family the most, they were instead subjected to foster care because of Kratochvil's negligence."

This pattern—hiding conflicts, violating candor to the tribunal, abusing privilege and immunity, and prioritizing institutional interests over vulnerable parties—is mirrored in SKO's current conduct:

- Hiding Conflicts of Interest: Just as Kratochvil failed to disclose her conflicts, SKO has created and exploited a conflict by involving the Rudolfs in this litigation.
- Violating Candor to the Tribunal: Just as Kratochvil presented a misleading report, SKO has presented a false narrative to this Court.
- Abusing Privilege: Just as Kratochvil claimed de facto immunity, SKO hides behind privilege while actively interfering.
- Prioritizing SKO's Interests: Just as Kratochvil prioritized her career, SKO prioritizes its defense over ethical duties.

This is not a coincidence; it is a culture. Discovery is needed to expose the full extent of this pattern."

II. The Crime-Fraud Exception Pierces Any Claim of Privilege.

SKO's primary defense for its actions is that its communications with the Rudolfs are privileged. This argument fails because the crime-fraud exception applies. The attorney-client privilege does not protect communications made in furtherance of an ongoing or future crime or fraud. *See In re Paternity of S.C.*, 966 N.E.2d 143 (Ind. Ct. App. 2012).

Here, Plaintiffs have made a prima facie showing that SKO has engaged in fraudulent and tortious conduct. SKO used its representation of the Rudolphs as a pretext to interfere in Plaintiff Held's real estate transaction, poison a personal relationship, and gather information to use against Plaintiffs in this lawsuit. This constitutes fraud on the court and tortious interference with a business relationship. The communications that furthered this scheme are not privileged and are discoverable.

III. The Requested Discovery is Directly Relevant and Necessary.

Plaintiffs seek expedited discovery to understand and prove the scope of SKO's misconduct.

This discovery is relevant to proving: * SKO's pattern and practice of unethical conduct. *

The corporate culture of concealment at SKO. * Whether SKO properly supervised

Defendant Kratochvil during her time as an SKO employee. * The extent of SKO's

interference in Plaintiffs' personal and business affairs, which is relevant to damages and

SKO's liability.

Denying this discovery prevents Plaintiffs from holding SKO accountable for its actions and allows SKO to profit from its wrongdoing.

IV. A Protective Order is Necessary to Stop Ongoing Harm.

SKO's interference has already caused tangible harm by damaging a decades-long friendship

and disrupting a significant real estate negotiation. Without a protective order, there is

nothing to stop SKO from continuing to interfere with Plaintiffs' current and future business

dealings, using its other clients as a shield. The Court's denial of a protective order—

especially without a hearing—leaves Plaintiffs vulnerable to SKO's continued harassment

and intimidation.

CONCLUSION

The Court's May 6 Order was based on a false narrative presented by SKO and was entered

without the benefit of an evidentiary hearing where Plaintiffs could have proven the extent of

SKO's interference. This pattern of misconduct mirrors the underlying facts of this case and demonstrates a profound disrespect for ethical obligations and the rule of law. For the foregoing reasons, the Court's Order denying Plaintiffs' Motion for Expedited Discovery and a Protective Order should be vacated, the motion should be granted, and the matter should be set for an immediate hearing.